

Parvez Akhtar v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 February 2014 · Writ - C No. 10724 of 2014 · **Writ disposed; bill details to be supplied; Clause 7.10 left open**

HEADNOTE

A writ challenging a modified electricity bill is disposed with a direction that the Executive Engineer communicate the full calculations and reasons by written order within a week after considering the consumer's representation. If still aggrieved after that communication, the consumer may approach the competent authority under Clause 7.10 of the Electricity Supply Code, 2005. The Court does not decide the demand on merits.

FACTUAL SUMMARY

The petitioner, Parvez Akhtar, challenged a modified electricity bill of U.P. Power Corporation Ltd. Counsel for the Corporation submitted that the ledger did not record the deposits or bill reduction alleged in the petition; that the order dated 27 November 2013, passed pursuant to the High Court's direction of 11 November 2013, omitted the details the petitioner sought; but that calculations on record showed the demand to be correct and would be supplied within a week.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

billing grievance — Clause 7.10 forum route after written reasons

HOLDING

Where a consumer challenges a modified electricity bill and the licensee undertakes to supply the calculations and reasons, the Executive Engineer is to inform the entire details through a written order within a week after considering the consumer's representation as earlier directed. After receipt of that communication, if still aggrieved, the consumer may approach the competent authority under Clause 7.10 of the Electricity Supply Code, 2005. The writ is disposed without adjudicating the demand. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances After directing the Executive Engineer to communicate full bill details by written order, the Court left the consumer to Clause 7.10 if still aggrieved, without deciding the demand on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE MODIFIED DEMAND AND ALLEGED DEPOSITS

The licensee's counsel asserted that the demand was correct and that the ledger did not match the alleged deposits; the Court did not adjudicate either issue and left Clause 7.10 open. ¶ 1